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CASE #	CASE NAME	HEARING NAME
CVRI2302832	ZAVALA VS THREE-DAY RANCH	PLAINTIFF'S APPLICATION FOR ORDER FOR SALE OF DWELLING (CCP 704.750) BY ROSENDO ZAVALA

Tentative Ruling:

This is a nuisance action filed June 1, 2023 by Plaintiff Rosendo Zavala against Defendants Three Day Ranch and Xena Vimercati alleging four causes of action for 1) public nuisance, 2) private nuisance, 3) trespass, and 4) negligence. Both Defendants defaulted and default court judgment on October 27, 2025 in the amount of \$1,503,275.85. On April 14, 2026, Plaintiffs filed a memorandum of post-judgment costs of \$206.55 plus accrued interest of \$53,449.81 for a total judgment of \$1,560,460.93. On May 18, 2026 a writ of execution was returned unused.

Zavala now moves the court for an order for sale of Vimercati's dwelling under a writ of execution. Zavala asserts that the equity in the property exceeds the homestead exemption and sale is necessary and appropriate to satisfy the judgment entered against her. Zavala asserts that it is not Vimercati's primary residence and therefore is not entitled to a homestead exemption. He asserts that no homestead exemption has been filed and there are three prior lienholders a 1st DoT of \$280,000, a 2nd DoT of \$65,000 and a third lien to Eastern Municipal in an unknown amount. Zavala asserts that the manufactured home and property is worth \$675,000 based on recent sales transactions, of which escrow was referred to in the Declaration of Xena Vimercati. Zavala asserts that based on the fair market value and estimated total liens and encumbrances there is sufficient equity to justify an order for sale pursuant to CCP section 704.780.

In opposition, Vimercati asserts the record establishes that she lives there, the homestead exemption applies and there is no non-exempt equity available. Vimercati points out that in paragraph 4 of the application it acknowledges that debtor is currently occupying the property. Further, Vimercati asserts that Zavala concedes there is no non-exempt equity if homestead applies. Vimercati also asserts that the court should not override California's homestead protection based on a manufactured dispute contradicted by Plaintiff's own admission and Defendant's evidence. Lastly, Vimercati asserts that the application fails procedurally because Plaintiff did not comply with the statutory Order-to-Show-Cause notice procedure.

Procedural Issues

OSC RE: Sale of Dwelling:

Code of Civil Procedure section 704.770 provides that, upon filing of the judgment creditor's application, the Court "shall" set a hearing and order the judgment debtor to show cause why an order for sale should not be made. (CCP §704.770(a).) Section 704.770 further provides that, "[n]ot later than 30 days before the time set for

hearing,” the judgment creditor “shall” serve the judgment debtor with a copy of the order to show cause, the application, and the Judicial Council notice of hearing. (CCP §704.770(b)(1).) The judgment creditor must also personally serve those documents on an occupant of the dwelling or, if no occupant is present, post the documents conspicuously at the dwelling. (CCP §704.770(b)(2).)

Before this court can rule on the application for sale of dwelling it must first set an OSC re: Sale of Dwelling, which must be properly served pursuant to CCP section 704.770 (b)(2). Accordingly, the court issues the OSC and sets a hearing on September 29, 2026 at 8:30 am in Dept. 3 so that the OSC may be served 30 days prior to the hearing. In light of the past issues with Defendant evading service, counsel for Defendant is expected to agree to accept service on behalf of Defendant.

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CASE #	CASE NAME	HEARING NAME
CVRI2601772	TOLBERT VS RISE ENERGY, LLC	DEMURRER ON COMPLAINT FOR WRONGFUL TERMINATION (OVER \$35,000) OF OMARI TOLBERT BY NUSUN POWER, LLC, ANTONIO RUSSO

Tentative Ruling:

The Demurrer in this matter is unopposed. The Court takes judicial notice as requested by the moving party. The court sustains without leave to amend as requested in the demurrer. The moving Defendants are to file an answer to the remaining 7th and 8th causes of action within 10 days .